

**SUPERIOR COURT, STATE OF CALIFORNIA  
COUNTY OF SANTA CLARA**

**Department 10  
Honorable Frederick S. Chung**

Rachel Tien, Courtroom Clerk  
191 North First Street, San Jose, CA 95113  
Telephone: 408-882-2210

**DATE: August 21, 2025**

**TIME: 9:00 A.M.**

**To contest the ruling, call (408) 808-6856 before 4:00 P.M.**

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling,  
in accordance with California Rule of Court 3.1308(a)(1) and Local Rule 8.E.

**The courthouse is open:** Department 10 is now fully open for in-person hearings, as of April 18, 2023. The court strongly prefers **in-person** appearances for all contested law-and-motion matters. For all other hearings (*e.g.*, case management conferences), the court strongly prefers either in-person or video appearances. Please note that as of January 1, 2025, telephone-only appearances are no longer permitted for any civil hearings, under Civil Local Rule 5.A, unless the court grants an exception. As a general matter, telephone-only appearances cause significant disruptions and delays to the proceedings. Please avoid appearing solely by audio unless absolutely necessary.

**Scheduling motion hearings:** Please go to <https://reservations.sccscourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) to reserve a hearing date for your motion *before* you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

**CourtCall is no longer available:** Department 10 uses Microsoft Teams for remote hearings. Please click on this link if you need to appear remotely, and then scroll down to click the link for Department 10: <https://santaclara.courts.ca.gov/online-services/remote-hearings>. Again, the court strongly prefers in-person or video appearances. Telephonic appearances are a sub-optimal relic of a bygone era.

**Recording is prohibited:** As a reminder, most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

**Court reporters:** Unfortunately, the court is no longer able to provide official court reporters for civil proceedings (as of July 24, 2017). If any party wishes to have a court reporter, the appropriate form must be submitted. See <https://santaclara.courts.ca.gov/general-information/court-reporter-information>.

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| LINE #                 | CASE #     | CASE TITLE                                        | RULING                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
|------------------------|------------|---------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">LINE 1</a> | 24CV451305 | Patelco Credit Union v. Candace Costiniano et al. | Click on <a href="#">LINE 1</a> or scroll down for ruling in lines 1-4.                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <a href="#">LINE 2</a> | 24CV451305 | Patelco Credit Union v. Candace Costiniano et al. | Click on <a href="#">LINE 1</a> or scroll down for ruling in lines 1-4.                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <a href="#">LINE 3</a> | 24CV451305 | Patelco Credit Union v. Candace Costiniano et al. | Click on <a href="#">LINE 1</a> or scroll down for ruling in lines 1-4.                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <a href="#">LINE 4</a> | 24CV451305 | Patelco Credit Union v. Candace Costiniano et al. | Click on <a href="#">LINE 1</a> or scroll down for ruling in lines 1-4.                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <a href="#">LINE 5</a> | 22CV399641 | Caroline Ma v. Robert Lin, M.D. et al.            | Click on <a href="#">LINE 5</a> or scroll down for ruling.                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <a href="#">LINE 6</a> | 24CV444866 | Itria Ventures LLC v. Anthony Murga, Jr.          | Click on <a href="#">LINE 6</a> or scroll down for ruling.                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <a href="#">LINE 7</a> | 24CV449520 | Wells Fargo Bank, N.A. v. Cynthia Subia           | Motion for RFAs to be deemed admitted: notice is proper, and the motion is unopposed. Given defendant's failure to respond to the RFAs, which are straightforward and appropriate, the motion is GRANTED. Moving party to prepare proposed order.                                                                                                                                                                                                                                                    |
| <a href="#">LINE 8</a> | 25CV467060 | Adam Guillette v. X Corp.                         | Click on <a href="#">LINE 8</a> or scroll down for ruling.                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <a href="#">LINE 9</a> | 22CV408643 | Janet Kim v. Francis Lee et al.                   | Motion for relief from jury waiver: the court will grant the motion, even though it is somewhat poor form for plaintiff's counsel to blame a former colleague for the failure to post the jury fee. When taking over a case from a colleague, it is counsel's responsibility to examine the file thoroughly. In this particular instance, the court will find excusable neglect. The motion is GRANTED. The matter is now set for a <u>jury</u> trial rather than a court trial on January 20, 2026. |

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| LINE #                  | CASE #     | CASE TITLE                         | RULING                                                                                                                                                                                                                              |
|-------------------------|------------|------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">LINE 10</a> | 25CV457782 | Ilya Rosenberg v. Sensel, Inc.     | Motion for leave to file amended complaint: notice is proper, and the motion is unopposed. Good cause appearing, the court GRANTS the motion. Plaintiff shall file the first amended complaint within 10 days of this minute order. |
| <a href="#">LINE 11</a> | 25CV459685 | Wells Fargo Bank, N.A. v. Duy Tran | Motion for RFAs to be deemed admitted: notice is proper, and the motion is unopposed. Given defendant's failure to respond to the RFAs, the motion is GRANTED. Moving party to prepare proposed order.                              |

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## Calendar Lines 1-4

**Case Name:** *Patelco Credit Union v. Candace Costiniano et al.*

**Case No.:** 24CV451305

### I. BACKGROUND

This is a fraud and breach of contract action brought by plaintiff Patelco Credit Union (“Patelco”) against defendants Candace Costiniano and Maximilian Rune Knudsen (together, “Defendants”). Defendants have filed separate but nearly identical motions to quash service of summons and separate but nearly identical motions to set aside the defaults entered against them.

According to the complaint, on or about May 15, 2020, Costiniano applied for and became a member of Patelco Credit Union. (Complaint, ¶ 13.) On February 10, 2024, Costiniano added Knudsen as a joint and associate member of Patelco. (*Ibid.*) On June 29, 2024, Patelco first became aware of and detected a ransomware attack that resulted in the encryption of its systems and unauthorized access to some of its databases. (*Id.* at ¶ 1.) This security breach required Patelco to shut down some of its day-to-day banking systems proactively to contain and remediate the situation. (*Ibid.*) As part of the shutdown, Patelco’s members were unable to access their accounts via online banking, but they were able to access available funds in their accounts even while Patelco’s systems were offline. (*Ibid.*) Certain members took advantage of this situation and made multiple unauthorized transfers, withdrawals, and related transactions involving funds that were well in excess of their usual daily activity and balances in their accounts. (*Id.* at ¶ 2.) These transactions significantly overdrew the members’ accounts and were conducted through Patelco’s branches, ATM machines, mobile applications (*e.g.*, Apple Cash, Apple Pay, Cash App, or Venmo), credit card transactions, debit card transactions, or Automated Clearing House (ACH) transfers to other financial institutions. (*Ibid.*)

Patelco learned of these overdrawn accounts after it brought its systems back online and contacted members to advise them that they needed to bring their accounts positive. (Complaint, ¶ 3.) Despite these efforts, certain members, including Defendants, allegedly chose to ignore the messages or claim that they did not conduct the transactions. (*Id.* at ¶¶ 3-4.)

On November 8, 2024, Patelco filed the original and still-operative complaint, asserting causes of action for: (1) breach of contract; (2) account stated; (3) fraud; (4) conversion; (5) unjust enrichment; and (6) violation of Penal Code sections 496 and 496c (receipt of stolen property). On December 13, 2024, Patelco submitted proofs of service of the summons and complaint, which declared that on November 15, 2024, a registered process server personally delivered the summons and related documents on behalf of Patelco to a “party or person authorized to receive service of process” for both Defendants. On December 20, 2024, the clerk’s office entered a default as to both Defendants. On January 29, 2025, the clerk’s office entered another default as to both Defendants.

On June 20, 2025, Defendants filed the present motions to quash service of summons and to set aside the defaults. Although a default prove-up hearing was originally scheduled for to be heard on July 21, 2025, this court continued that hearing to August 25, 2025, in order to hear the present motions first.

## II. DISCUSSION

### A. Motions to Quash

As noted above, Patelco obtained entries of default against Defendants. “The entry of a default terminates a defendant’s rights to take any further affirmative steps in the litigation until either its default is set aside or a default judgment is entered. [Citations.]” (*Devlin v. Kearny Mesa Amc/Jeep/Renault* (1984) 155 Cal.App.3d 381, 385; see also *People v. One 1986 Toyota Pickup* (1995) 31 Cal.App.4th 254, 259 [“Under Code of Civil Procedure section 585 (judgment on default), the entry of a default terminates a defendant’s rights to take any further affirmative steps in the litigation until either the default is set aside or a default judgment is entered. A defendant against whom a default has been entered is out of court and is not entitled to take any further steps in the cause affecting plaintiff’s right of action. [Citations.]”].) Moreover, entry of default deprives the court of jurisdiction to consider any motion other than a motion for relief from default. (See *W.A. Rose Co. v. Municipal Court* (1959) 176 Cal.App.2d 67, 72 [“The municipal court thereafter lost jurisdiction to do anything but enter the default and judgment . . . ”].)

Based upon the foregoing, Defendants’ motions to quash are premature at best. Moreover, because Defendants’ motions are based on the notion that they were not properly served—a notion that the court rejects, for the reasons discussed below in connection with the motions to set aside—the court finds that the motions to quash are not well taken.

The court DENIES Defendants’ motions to quash.<sup>1</sup>

### B. Motions to Set Aside Default Judgments

Costiniano and Knudsen’s motions to set aside are based on Code of Civil Procedure section 473.5, under which they argue that they did not receive “actual notice” of this action. (See Memorandum of Points of Authorities in Support of Costiniano’s Motion to Set Aside Default Judgment, pp. 2:1-3:8; Memorandum of Points of Authorities in Support of Knudsen’s Motion to Set Aside Default Judgment, pp. 2:1-3:8.)

Patelco responds by questioning the credibility of the declarations submitted by Defendants in support of their motions and also submits a declaration from a process server, Mikayla Plushnik, who avers that she properly served Costiniano and Knudsen with the summons and complaint. (Patelco’s Opposition to Costiniano and Knudsen’s Motion to Quash Service and Set Aside Defaults (“Opposition”), pp. 2:22-4:17.) Patelco also argues that the doctrine of laches applies because of Defendants’ “unexcused delay” in filing their motions. (*Id.* at pp. 4:19-5:21.)

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<sup>1</sup> It is unclear if Defendants intended to file their motions to quash as independent motions concurrently with their motions to set aside, or if Defendants intended to file these motions as responsive pleadings under Code of Civil Procedure section 473.5, subdivision (b). (See Code Civ. Proc., § 473.5, subd. (b) [“The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.”].) Given that Defendants reserved hearing dates for their motions to quash, the court assumes the former.

## **1. Laches**

As an initial matter, the court is unpersuaded by Patelco's laches argument. Patelco does not cite any legal authority supporting it and instead focuses its citations on case law discussing self-represented litigants. (See Opposition, p. 5:10-18.) Nor is it clear to the court how laches could possibly apply to the circumstances here, where Defendants are not asserting *an equitable right or claim* but rather requesting that they be permitted to defend this case on the merits based on a statutory provision. (See *Magic Kitchen LLC v. Good Things International, Ltd.* (2007) 153 Cal.App.4th 1144, 1157 ["A defendant must demonstrate three elements to successfully assert a laches defense: (1) delay in asserting a right or a claim; (2) the delay was not reasonable or excusable; and (3) prejudice to the party against whom laches is asserted. [Citations.]"]; *Estate of Kampen* (2011) 201 Cal.App.4th 971, 998 ["Laches is 'an unreasonable delay in asserting an equitable right, causing prejudice to an adverse party such as to render the granting of relief to the other party inequitable.' [Citation.]"]; see also *Johnson v. City of Loma Linda* (2000) 24 Cal.4th 61, 77.) In addition, Patelco fails to show any cognizable prejudice—indeed, its opposition brief does not even mention prejudice.

## **2. Code of Civil Procedure Section 473.5**

Turning to the merits of the Code of Civil Procedure section 473.5 analysis, section 473.5 provides that when "service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered." (Code Civ. Proc., § 473.5, subd. (a).) "A notice of motion to set aside a default or default judgment and for leave to defend the action . . . shall be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect." (Code Civ. Proc., § 473.5, subd. (b).)

Defendants have submitted virtually identical declarations, asserting that Patelco never served them with notice of the lawsuit and claiming that they became aware of the lawsuit only after searching the court's public portal in connection with an unrelated case. (See Declaration of Candace Costiniano in Support of Motion to Set Aside Default Judgment; Declaration of Maximilian R. Knudsen in Support of Motion to Set Aside Default Judgment.) Knudsen declares that he "was not at home when service was purported to have happened," while Costiniano declares, "I was never personally served with the summons and complaint for Plaintiffs [sic] lawsuit. There has been no effort to serve me any paperwork. There was most certainly no one serving me at 3:37 P. M. on 11/15/2024." (See Declaration of Maximilian R. Knudsen in Support of Motion to Quash, ¶ 2; Declaration of Candace Costiniano in Support of Motion to Quash, ¶ 2.)

Patelco argues that the "only evidence Ms. Costiniano is able to produce is her statement is [sic] she was not served. She was obviously home as only Mr. Knudsen made a point of saying in his declaration he was not home. There is no contention the Summons and Complaint was left on a doorstep or given to the wrong person, which is the usual excuse

given. She just says she could not have been served at the time referenced on the Proof of Service, but gives no explanation why.” (Opposition, p. 4:13-17.)

The agrees with Patelco that Defendants’ respective declarations lack credibility. As Patelco notes, Costiniano offers no explanation as to how Patelco failed to serve her at her home despite Plushnik’s attestation that she served an individual who identified herself as Costiniano at an address that, from Defendants’ own moving papers, appears to be Defendants’ primary residence. (Declaration of Mikayla Plushnik, ¶¶ 2-5.) Rather, Costiniano summarily states that Patelco did not serve her on November 15, 2024. Similarly, both Costiniano and Knudsen have no answer to Plushnik’s sworn statement that she (Plushnik) waited for Costiniano to call Knudsen to confirm that she (Costiniano) had authority to accept service on his behalf. (*Ibid.*) Patelco rightly points out that Plushnik has no incentive to make up these facts, whereas Defendants have every reason to deny service in this case.

The proofs of service, signed under penalty of perjury on November 18, 2024, are themselves presumptive evidence of proper service, and they are backed up by Plushnik’s July 25, 2025 declaration (also signed under penalty of perjury). Defendants’ self-serving declarations fail to overcome this evidence, and so the court rejects Defendants’ motions under section 473.5.

### **3. Code of Civil Procedure Section 473, Subdivision (b)**

Notwithstanding the foregoing, and even though the court has serious questions regarding Defendants’ credibility, the court notes that Defendants’ declarations do contain sufficient statements to support the notion that their failure to respond to the complaint was the product of “surprise” under Code of Civil Procedure section 473, subdivision (b). Under section 473(b), a default may be set aside if a party can show, within “six months,” that it was “taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” Defendants’ declarations describe their “surprise” and also emphasize their “lack of familiarity with the intricacies of how the court system works.” (See Declarations, ¶¶ 2 & 3(c).) Giving Defendants the benefit of the doubt, particularly as self-represented litigants, the court will construe their motion as setting forth an alternative request for relief under section 473(b). As the courts of this state have repeatedly made clear, public policy in California strongly favors a determination of actions on the merits rather than by default. (See *Rodriguez v. Brill* (2015) 234 Cal.App.4th 715, 725 [“The California Supreme Court has directed that the provisions of section 473 ‘are to be liberally construed’ to implement the policy that favors the determination of actions on their merits. [Citations.]”].)

The court notes that these motions were filed on June 20, 2025, exactly six months after the initial dates of entry of defaults against each of the Defendants. As a consequence, the motions are timely under section 473(b), by a whisker.

The court sets aside the defaults entered against Costiniano and Knudsen.

### **III. SUMMARY**

The court DENIES Defendants’ motions to quash.

The court GRANTS Defendants’ motions to set aside the defaults under Code of Civil Procedure section 473(b) only, not under section 473.5.

The court VACATES the default prove-up hearing set for August 25, 2025 at 1:30 p.m. in Department 14.

Defendants must file substantive responses (or a substantive joint response) to the complaint with 15 days of this order.

IT IS SO ORDERED.

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## **Calendar Line 5**

**Case Name:** *Caroline Ma v. Robert Lin, M.D. et al.*

**Case No.:** 22CV399641

### **I. BACKGROUND**

This is an action for medical malpractice by plaintiff Caroline Ma against several defendants, arising from a corrective vision procedure performed on May 5, 2021.

Ma filed her original complaint on June 6, 2022. After the court granted leave to amend, she filed the operative first amended complaint (“FAC”) on April 12, 2023. The FAC states three causes of action: (1) medical malpractice (against defendants Robert Lin, M.D., Robert Lin, M.D., Inc., Scott Barnes, M.D., IQ Laser Vision/Vision Institute of Northern California, Danny Luong, M.D., Gregory Phan, M.D., Vision Institute of Southern California, Inc., and various Does); (2) products liability/negligence (against defendants Staar Surgical Company, Scott Barnes, M.D., and various Does); and (3) intentional infliction of emotional distress (against defendants Robert Lin, M.D., Robert Lin, M.D., Inc., IQ Laser Vision/Vision Institute of Northern California, Gregory Phan, M.D., Vision Institute of Southern California, Inc., Amber Li, and various Does). It alleges that Ma signed a “release of all claims” on May 14, 2021, but that this release is “void or voidable” because Ma “never read the agreement before signing.” (FAC, ¶¶ 26-27.) There are no exhibits attached to the FAC.

Defendant Staar Surgical Company filed an answer to the FAC on May 8, 2023. Defendant Danny Luong, M.D. filed his answer to the FAC on May 12, 2023. Defendants Robert Lin, M.D., Robert Lin, M.D., Inc., IQ Laser Vision/Vision Institute of Northern California, Gregory Phan, M.D., Vision Institute of Southern California, Inc., and Amber Li filed their answer on May 16, 2023. This answer asserts several (unnumbered) affirmative defenses, including that “Plaintiff’s claim is barred based upon the release executed by plaintiff in May, 2021.” (Answer, ¶ 16.) On May 25, 2023, Ma dismissed the third cause of action for intentional infliction of emotional distress. Defendant Scott Barnes, M.D. filed an answer to the FAC on September 12, 2023.

Now before the court is a motion for summary judgment by defendants Robert Lin, M.D., Robert Lin, M.D., Inc., IQ Laser Vision/Vision Institute of Northern California, Gregory Phan, M.D., Vision Institute of Southern California, Inc., and Amber Li (hereinafter referred to collectively as “Defendants”). Ma filed an opposition to the motion on July 20, 2025. Defendants filed a reply on August 8, 2025. Ma then filed a “sur-reply” on August 12, 2025, and Defendants filed a “response to plaintiff’s unauthorized sur-reply” on August 14, 2025.

### **II. REQUEST FOR JUDICIAL NOTICE**

Defendants have submitted a request for judicial notice with their motion. “Judicial notice may not be taken of any matter unless authorized or required by law.” (Evid. Code, § 450.) A precondition to judicial notice in either its permissive or mandatory forms is that the matter to be noticed be relevant to the material issue before the court. (*Silverado Modjeska Recreation and Park Dist. v. County of Orange* (2011) 197 Cal.App.4th 282, 307 [citing *People v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422, fn. 2].) It is the court, and not the parties, that determines relevance. Evidence Code section 453, subdivision (b), requires a

party seeking notice to “[furnish] the court with sufficient information to enable it to take judicial notice of the matter.”

Defendants seek judicial notice of two documents, submitted as Exhibits G and H to the declaration of Scott Kanter in support of the motion, “pursuant to California Evidence Code §§ 450, 452, 453.” (Request, p. 2:1-2.)<sup>2</sup> No specific basis for taking judicial notice of either document is identified or discussed.

Exhibit G is a printout of a search result by an unknown person that appears to have been conducted on the website of the California Secretary of State. This document states that “[t]he data provided is not a complete or certified record.” Exhibit H is a copy of a certificate of dissolution filed with the California Secretary of State.<sup>3</sup>

Defendants have not provided the court with sufficient information under Evidence Code section 453, subdivision (b), to take judicial notice of these documents. The basis for the request remains unclear. It appears that Defendants believe that both documents may be noticed as official records, but neither document necessarily appears to qualify on its face. (See *Jolley v. Chase Home Finance LLC* (2013) 213 Cal.App.4th 872, 889 [“[W]e know of no ‘official web site’ provision for judicial notice in California.”]; *Duronslet v. Kamps* (2012) 203 Cal.App.4th 717, 737 [refusing to take judicial notice of information on the California Board of Registered Nursing web site]; *Searles Valley Minerals Operations, Inc. v. State Bd. of Equalization* (2008) 160 Cal App 4th 514, 519 [affirming denial of request to take notice of the truth of the contents of website pages of the American Coal Foundation and the U.S. Department of Energy]; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 607-608 [applications and supporting documents filed by private parties with Department of Insurance were not official acts of department subject to judicial notice]; *Hughes v. Blue Cross of N. Cal.* (1989) 215 Cal.App.3d 832, 856, fn. 2 [Statement of Information, although on file with a government agency, not subject to judicial notice as an official act under subdivision (c) because it was prepared by private parties, not the Secretary of State]; *People v. Thacker* (1985) 175 Cal.App.3d 594, 598-599 [copies of articles of incorporation, statement by domestic corporation, and notice of issuance of shares were materials prepared by private person, merely on file with state agencies, and not official acts].)

The court denies the request for judicial notice.

### **III. DEFENDANTS’ MOTION FOR SUMMARY JUDGMENT**

#### **A. General Standards**

The pleadings limit the issues presented for summary judgment or summary adjudication, and such a motion may not be granted or denied based on issues not raised by the pleadings. (See *Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258; *Nieto v. Blue Shield of Calif. Life & Health Ins.* (2010) 181 Cal.App.4th 60, 73 [“[T]he pleadings determine the scope of relevant issues on a summary judgment motion.”].) “The issues to be addressed in a summary adjudication motion are framed by the pleadings.” (*County of Los Angeles v.*

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<sup>2</sup> Evidence Code sections 450 and 453 do not themselves state a basis for judicial notice.

<sup>3</sup> This is not how Exhibit H is described in paragraph 9 of the Kanter declaration, which calls it a “website business name search for VISION INSTITUTE OF NORTHERN CALIFORNIA.”

*Superior Court* (2009) 181 Cal.App.4th 218 226.) “A moving party seeking summary judgment or adjudication is not required to go beyond the allegations of the pleading, with respect to new theories that could have been pled, but for which no motion to amend or supplement the pleading was brought, prior to the hearing on the dispositive motion.” (*Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 444 [quoting *Howard v. Omni Hotels Management Corp.* (2012) 203 Cal.App.4th 403, 421]; see also *California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 637, fn. 3 (*Lawlor*) [“Evidence offered on an unpled claim, theory, or defense is irrelevant because it is outside the scope of the pleadings.”].)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) A motion for summary judgment or adjudication shall be granted only if it completely disposes of an entire cause of action, an affirmative defense, a claim for damages, or an “issue of duty.” (See Code Civ. Proc., § 437c, subd. (f)(1); *McClasky v. California State Auto. Ass’n* (2010) 189 Cal.App.4th 947, 975 [“If a cause of action is not shown to be barred in its entirety, no order for summary judgment—or adjudication—can be entered.”]; *Palm Spring Villas II Homeowners Association, Inc. v. Parth* (2016) 248 Cal.App.4th 268, 288.) Summary adjudication of general “issues” or facts is not permitted. (See *Raghavan v. The Boeing Company* (2005) 133 Cal.App.4th 1120, 1136.)

“A defendant seeking summary judgment must show that at least one element of the plaintiff’s cause of action cannot be established, or that there is a complete defense to the cause of action . . . . The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72; internal citations omitted.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable finder of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, at p. 850.) “A party ““cannot avoid summary judgment by asserting facts based on mere speculation and conjecture, but instead must produce admissible evidence raising a triable issue of fact. [Citation.]’ [Citation.]” [Citation.]” (*Christina C. v. County of Orange* (2013) 220 Cal.App.4th 1371, 1379; see also *McHenry v. Asylum Entertainment Delaware, LLC* (2020) 46 Cal.App.5th 469, 479 [because speculation is not evidence, speculation cannot create a triable issue of material fact].)

The moving party’s declarations and evidence will be strictly construed in determining whether they negate or disprove an essential element of a plaintiff’s claim, resolving “any evidentiary doubts or ambiguities in plaintiff’s favor.” (*Johnson v. American Standard, Inc.* (2008) 43 Cal.4th 56, 64.) While the same standards of admissibility govern both, the opposition declarations are liberally construed, and the moving party’s evidence is strictly scrutinized. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 768.)

In addition to being bound by the operative pleading, the opposing party may be bound by admissions in deposition testimony or discovery responses. “Where a declaration submitted in opposition to a motion for summary judgment clearly contradicts the declarant’s earlier deposition testimony or discovery responses, the trial court may fairly disregard the declaration and ‘conclude there is no substantial evidence of the existence of a triable issue of fact.’” (*Whitmire v. Ingersoll-Rand Co.* (2010) 184 Cal.App.4th 1078, 1087, citing *D’Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1, 21.) “In a nutshell, the rule bars a party opposing

summary judgment from filing a declaration that purports to impeach his or her own prior sworn testimony.” (*Scalf v. D.B. Lodge Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1522.)

The moving party may not rely on additional evidence submitted with its reply papers. (See Code Civ. Proc., § 437c, subd. (b)(4) [“The reply shall not include any new evidentiary matter”]; *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-38 [“The general rule of motion practice . . . is that new evidence is not permitted with reply papers. This principle is most prominent in the context of summary judgment motions . . . .”]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252.) Reply separate statements are not permitted. (See Code Civ. Proc., §437c, subd. (b)(4).)

The court has not considered the “supplemental” declaration of Scott Kanter submitted with Defendants’ reply, or the attached exhibits. The court also has not considered Ma’s surreply, filed without leave of court on August 12, 2025 and Defendants’ response to this surreply, filed without leave of court on August 14, 2025.<sup>4</sup>

## **B. The Basis for Defendants’ Motion**

Despite the labels on the caption pages of Defendants’ notice of motion and memorandum of points and authorities, Defendants’ motion is for summary judgment only. The notice of motion states that Defendants “move for summary judgment on the following grounds: 1) Plaintiff’s First Amended Complaint is barred by the Release of All Claims she signed. 2) Dr. Phan’s care and treatment complied with the standard of care. 3) Neither defendant Amber Li nor Dr. Lin were medically negligent as Amber Li is not a medical provider and they did not owe plaintiff a duty as they did not provide any care and treatment to plaintiff. 4) Defendants Robert T. Lin, M.D., Inc. and IQ Laser Vision/Vision Institute of Northern California cannot be vicarious[ly] liable as they were not in existence at the time of the ICL procedure.” (Notice of Motion, p. 2:8-16 [selective ALL CAPS removed].)

The notice of motion does not include any request for summary adjudication in the alternative (again, except on the caption page). Where a motion is for summary judgment only, the court has no power to grant summary adjudication of any particular claim, issue, or defense. (See *McMillan Companies, LLC v. American Safety Indemnity Co.* (2015) 233 Cal.App.4th 518, 542, citing *Motevalli v. Los Angeles Unified School Dist.* (2004) 122 Cal.App.4th 97, 114 [“a motion for summary adjudication cannot be considered by the court unless the party bringing the motion for summary judgment duly gives notice that summary adjudication is being sought as an alternative to summary judgment, in the event summary judgment is denied”]; see also 6 Witkin, *Cal. Procedure* (6th ed. 2021-2023) Proceedings Without Trial, § 322 [listing cases].)

In addition, rule 3.1350(b) of the California Rules of Court states: “If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” Defendants’ separate statement does not

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<sup>4</sup> Under certain very limited circumstances, a surreply brief may be appropriate, but the court finds no such circumstances here, given that Ma’s surreply mainly (and unnecessarily) augments the same arguments made in her opposition.

comply with this rule. The four arguments for summary judgment are not repeated “verbatim” in Defendants’ separate statement. Instead, the statement lists five “issues” that roughly correspond to the four arguments for summary judgment. These issues are supported by undisputed material facts that are not consecutively numbered from issue to issue.

### C. Discussion

Ma does not oppose the motion in its entirety. She “does not oppose Defendants’ Motion as to Issues Nos. 3 and 5 and has voluntarily dismissed, without prejudice, Defendant Amber Li (subject to a tolling agreement) and Defendant IQ Laser Vision/Vision Institute of Northern California.” (Opposition, p. 2:11-13.) Ma also does not dispute any of the undisputed material facts (“UMFs”) listed in support of Issues Nos. 3 and 5. No dismissal of any moving defendant was on file at the time Ma’s opposition was filed, and if Ma had not filed a dismissal before the ruling on this motion, the court would ordinarily have granted summary judgment as to Li, Robert T. Lin, M.D., Inc., and IQ Laser Vision/Vision Institute of Northern California, based on the lack of opposition. That grant would have operated as a dismissal *with* prejudice. But because Ma did ultimately file an extremely late dismissal “without prejudice” on August 13, 2025, several days after the filing of Defendants’ reply brief, the court will now DENY the summary judgment as to these dismissed defendants as MOOT.<sup>5</sup>

Remaining for discussion are the arguments for summary judgment as to the first cause of action by the remaining moving Defendants: (1) that the release signed by Ma bars liability; (2) that the care given by Dr. Phan to Ma met the standard of care; and (3) that Dr. Lin did not owe Ma a duty of care that was breached. The first cause of action for medical malpractice is the only one asserted against the remaining moving Defendants. The second cause of action is asserted against different, non-moving defendants.

In addition to their request for judicial notice, Defendants’ motion is supported by two declarations. The first declaration is from counsel Scott Kanter and authenticates attached Exhibits A-I. Exhibit A is a copy of Ma’s medical records from IQ Laser Vision. Exhibit B is an unmarked copy of Ma’s July 31, 2024 deposition transcript.<sup>6</sup> When asked if she remembered signing a release on May 14, 2021, Ma testified that she could not recall, but she was told to sign various documents at some point. She testified she could not read these documents and that Amber Li told her they had to be signed in order for Ma to get a refund. (Ex. B, pp. 79-82.) She also testified that when she later received a copy of the release agreement via email she did not understand it. (*Id.* at pp. 85-86.) Exhibit C is an unmarked transcript of the December 19, 2023 deposition of Amber Li. Exhibit D is an unmarked transcript of the October 29, 2024 deposition of Dr. Phan. Among other things, Dr. Phan testified that it was his understanding that he was an independent contractor working for IQ Laser Vision at the time of Ma’s injury. (See Ex. D, pp. 32-34.) Exhibit E is a copy of the “Release of All Claims” at issue in this motion. Exhibit F is a May 6, 2021 letter from IQ Laser Vision to Ma terminating the doctor-patient relationship, with a signed

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<sup>5</sup> The court notes that as a practical matter, the case against Li ended when the third cause of action was dismissed, all the way back on May 25, 2023, as the first and second causes of action are not asserted against Li.

<sup>6</sup> Rule 3.1116(c) of the California Rules of Court requires that deposition testimony submitted as an exhibit be marked in a manner that calls attention to the relevant portion of the testimony.

acknowledgement from Ma dated May 14, 2021. Exhibits G and H are the two documents submitted for judicial notice. Exhibit I is a copy of the FAC.

The second declaration in support of the motion is from Julie Schallhorn, M.D., who provides an expert opinion regarding the level of care provided to Ma by Drs. Lin and Phan. A copy of Schallhorn's CV is attached to her declaration as Exhibit A. Defendants also rely on Schallhorn's declaration for her opinion that "[o]n all of plaintiff's post-operative visits at IQ Laser Vision, plaintiff's uncorrected visual acuity was sufficient to read standard sized text such as the Release of All Claims form that Plaintiff signed postoperatively." (Schallhorn Decl., ¶ 15.)

## **1. The Release**

"A release is an instrument by which the signing party (releaser) relinquishes claims or potential claims against one or more persons (releasees) who might otherwise be subject to liability against him." (*Rodriguez v. Oto* (2013) 212 Cal.App.4th 1020, 1026 (*Rodriguez*)). "The existence of a valid release is a complete defense to a tort action against the releasee." (*Ibid.*) Code of Civil Procedure section 877, subdivision (a) provides that a release given in good faith to a tortfeasor does "not discharge any other such party from liability unless its terms so provide." (Code Civ. Proc., § 877, subd. (a); see also *Cline v. Homuth* (2015) 235 Cal.App.4th 699, 705 (*Cline*); *Hess v. Ford Motor Co.* (2002) 27 Cal.4th 516, 524 (*Hess*)). "In determining whether the 'terms so provide' [citation], we apply the same rules that govern any other contract." (*Hess*, 27 Cal.4th at p. 524; see also *Cline*, 235 Cal.App.4th at p. 705; Civ. Code, § 1635 ["All contracts, whether public or private, are to be interpreted by the same rules, except as otherwise provided by this Code."]). "A third party may enforce a contract that is expressly made for his benefit." (*Cline*, 235 Cal.App.4th at p. 705, citing Civ. Code, § 1559; see also *Hess*, *supra*, 27 Cal.4th at p. 524.) "However, '[a] putative third party's rights under a contract are predicated upon the contracting parties' intent to benefit' it." (*Hess*, 27 Cal.4th at p. 524; see also *Cline*, 235 Cal.App.4th at p. 705.) "Ascertaining this intent is a question of ordinary contract interpretation." (*Id.*) "The intention of the parties to a written contract is to be determined from the writing alone, if possible; subject, however, to other statutory rules of contract interpretation." (*Cline*, 235 Cal.App.4th at p. 705.)

The release agreement (Exhibit E)<sup>7</sup> states that the parties "have executed this Release as of the date(s) listed below." The "parties" to the release are not defined in the document, and it is signed only by Ma and Dr. Lin (on behalf of himself and Vision Institute of Southern California, Inc.). Their signatures have a pre-printed date of "May 6, 2021."<sup>8</sup> The document states that in exchange for a payment of \$5,000,00, the "undersigned" releases "Robert T. Lin, M.D., Robert T. Lin, M.D., Inc., Vision Institute of Southern California, Inc. dba IQ Medical Center and dba IQ Laser Vision, and their respective agents, partners, contractors, employees, affiliates, officers, directors, trustees, attorneys, and affiliates (collectively 'Releasees') from any an all actions . . . in any way growing out of . . . any medical care, examination or treatment, failure or refusal to provide medical care, examination or treatment, or any negligent medical care, examination or treatment rendered to Caroline Ma." (Exhibit E, pp. 1-2.) The release "extends to . . . all claims alleged or which could have been alleged arising out of

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<sup>7</sup> A copy of the release is also included as part of Defendants' Exhibit A, as well as part of other exhibits.

<sup>8</sup> Nothing on the face of the release indicates that it was signed by anyone on May 14, 2021.

treatment rendered by, and/or any medical services and laser vision corrective surgery ('laser vision corrective services') performed by Releasees, and any of his or its employees, contractors, or agents, for the benefit of Ms. Caroline Ma beginning on or about 06/06/2020, and continuing thereafter." (*Ibid.*)

The release further states: "Each party acknowledges and agrees that he/she has been afforded an opportunity to consult with an attorney of his/her choice or has voluntarily waived such right. Each party relies upon his own due diligence and effort in entering into this Release, and not on any representation, whether written, oral, or otherwise, made by the other party." The release also goes on to state: "The undersigned states that he/she has carefully read the foregoing Release and knows the contents thereof, and intending to be legally bound by its terms signs the same of his own free action." (Exhibit E, p. 4.)

While Dr. Phan is identified as having performed "certain Implantable Collamer Lens procedures on the left eye of Caroline Ma," no relationship between Dr. Phan and any the "Releasees" is identified anywhere in the Release, and he is not described as an independent contractor. Although there is a blank signature block for Dr. Phan as a "Releasee," he did not sign it.

In *Rodriguez, supra*, the Court of Appeal discussed a release of the defendant, its agents, "and all other persons, firms, corporations, associations or partnerships." The Court noted that, in *Hess, supra*, the California Supreme Court had reviewed similar "all other persons" language and concluded that this language did not apply to the third party in that case (Ford Motor Co.), because "[t]he uncontroverted evidence bore out the plaintiff's theory [on the doctrine of mutual mistake], and nothing from the manufacturer [Ford] raised an issue for the jury." (*Rodriguez, supra*, 212 Cal.App.4th at p. 1034, discussing *Hess, supra*, 27 Cal.4th at pp. 521-525.) The Court of Appeal then contrasted the facts before it in *Rodriguez*: "Here plaintiff offered no evidence other than his own subjective intent, and even that evidence was strikingly vague at best. He cited only his own deposition testimony. . ."; this was insufficient "to raise a triable issue of fact concerning the mutual intention of the parties." (*Rodriguez, supra*, 212 Cal.App.4th at pp. 1034-1035.) Thus, the Court concluded that the "all other persons" provision in the release did in fact apply to the third party, Toshiba, based upon the Court's interpretation of the release language.

While the release here is not a model of clarity, it is sufficient to meet Defendants' initial burden to show that it provides a complete defense, not just to Dr. Lin, but also to Dr. Phan as a non-signatory "Releasee," third-party employee, contractor, and/or agent of the signatory "Releasees," for any claims relating to the procedure performed on Ma.

With the burden shifted to Ma, she argues that the release is void because of fraud in the execution, mistake, and/or duress. (See Opposition, pp. 5:2-8:8.)

The FAC itself alleges that the signed release is "void or voidable" as a result of Ma's not being able to read it before signing it, as a result of Defendants' paraphrasing of the release (when they read it out loud) in a manner that prevented Ma from "understanding that this agreement was not simply about partially refunding her payment for the May 5, 2021 ICL procedures," and as a result of Defendants' deliberate omission of the portions of the agreement referring to her right to consult an attorney, barring her from speaking about the incident, or reporting Defendants to any licensing board. (See FAC, ¶ 27.) The FAC also

contains a generic allegation in paragraph 28 that the release is void or voidable “under multiple legal theories including, but not limited to, fraud, misrepresentation, duress, and undue influence.” (*Id.* at ¶ 28.) At the same time, the FAC does not state any cause of action for fraud, and the only reference to “duress” is in this boilerplate paragraph 28.

The court concludes that Ma has sufficiently shown the existence of triable issues regarding fraud in the inducement, mistake, and duress in connection with the signed release. Ma has alleged in her FAC and argued on summary judgment that she did not know what she was signing because she could not read the document for herself and had to rely on Defendants’ allegedly inaccurate oral paraphrasing of the document.

Ma’s retained expert, Dr. David Hillman, opines in his declaration that Ma did not have adequate vision on May 6 or May 7, 2021 to be able to read the language of the release. This is sufficient to counter the statement by Schallhorn that Ma did have adequate vision, and it raises a triable issue of material fact. (See Hillman Declaration (Ma’s Exhibit K), ¶ 14.) It also raises a triable issue as to whether Ma’s failure to read the release (and reliance on Defendants’ paraphrasing) before signing it was reasonable and without negligence on her part. (See *Rosencrans v. Dover Images, Ltd.* (2011) 192 Cal.App.4th 1072, 1080 [a contract “is only considered void when the plaintiff’s failure to discover the true nature of the document executed was without negligence on the plaintiff’s part . . . . Generally, it is not reasonable to fail to read a contract; this is true even if the plaintiff relied on the defendant’s assertion that it was not necessary to read the contract... [r]easonable diligence requires a party to read a contract before signing it”]; see also *Brookwood v. Bank of America* (1996) 45 Cal.App.4th 1667, 1674 [“Reliance on an alleged misrepresentation [or, by extension of reasoning, a unilateral mistake not encouraged or fostered by the other party,] is not reasonable when plaintiff could have ascertained the truth through the exercise of reasonable diligence . . . . Reasonable diligence requires the reading of a contract before signing it.”].)

Ma has also submitted a declaration with the opposition. (See Exhibit L.) She states that during a “May 7, 2021 postop visit,” Amber Li told her that a refund for the eye procedure had been approved by Dr. Lin and that she needed to sign documents to receive the refund. “I told her I could not see well enough to read the document due to my recent eye surgeries and asked her to read it to me. She instead offered to summarize the document and said it was just paperwork needed to process the refund. I signed the document in reliance on Ms. Li’s statement.” (Ma Decl., ¶ 9.) Ma further declares that she did not realize the document was a release until she received a copy of it in June or July of 2021, that she did not knowingly agree to waive her legal rights, and that she would not have signed if she had known it was a release: “I did not intend to sign a legal release of claims, and the execution was a mistake.” (*Id.* at ¶ 10.) In a footnote (fn. 2), Ma states that while she testified at deposition that she could not recall when she signed the document, she now believes she signed it on May 7, 2021, based on her May 7, 2021 refund receipt. Ma does not state that any form of duress caused her to sign the release.

Defendants argue in their reply that Ma’s declaration should be disregarded as inconsistent with her deposition testimony regarding the date she signed the release (May 7



rather than May 14). This is not persuasive.<sup>9</sup> First, Ma testified at her deposition that she was not sure of the exact date that she signed the release, so her declaration does not contradict her testimony in that regard. The rest of the declaration does not clearly contradict her testimony, either. Further, any alleged inconsistency with the FAC (which describes events “[o]n or about May 14, 2021”) is not a basis for disregarding the declaration. Moreover, Defendants’ own evidence demonstrates that a triable issue continues to exist as to when the release was signed. As noted above, the release states that “the parties hereto have executed this Release as of the date(s) listed below.” The only date listed under each signature is May 6, 2021; the release itself provides no support for a May 14, 2021 execution date.

Defendants’ only evidence for a May 14, 2021 signing date is Amber Li’s deposition testimony—specifically, Li’s testimony at pages 150:7-151:1. (See Defendants’ “Issue” 1, UMF No. 3.)<sup>10</sup> Li states that she gave Ma a copy of the release on the date of Ma’s “initial post-op,” relying on the dates in Ma’s medical records. Li did not testify that she gave Ma the release on May 14. She says she gave Ma “I guess . . . basic information about you’re signing this release, and then we’re going to refund you.” At best, this creates a disputed factual issue; it does not establish a May 14, 2021 signing date for purposes of summary judgment.

Because triable issues of material fact remain as to the date the release was signed and as to Ma’s ability to read any document she signed on May 6 or May 7, triable issues remain as to whether the release may be void or voidable. Therefore, the court denies the motion for summary judgment based on the release.

As the release does not dispose of the first cause of action, the court will consider the other remaining arguments.

## **2. Whether Dr. Phan’s Treatment Met the Standard of Care (First Cause of Action)**

“The elements of a cause of action for medical malpractice are: (1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage.” (*Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968.)

““The standard of care against which the acts of a physician are to be measured is a matter peculiarly within the knowledge of experts; it presents the basic issue in a malpractice action and can only be proved by their testimony [citations], unless the conduct required by the particular circumstances is within the common knowledge of the layman.” [Citations.]’ [Citations.]” (*Flowers v. Torrance Memorial Hospital Medical Center* (1994) 8 Cal.4th 992, 1001.) “California courts have incorporated the expert evidence requirement into their standard for summary judgment in medical malpractice cases. When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell

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<sup>9</sup> Again, the court has not considered the discovery responses attached to the Kanter declaration submitted with the reply. (See Code Civ. Proc., § 437c, subd. (b)(4) [“The reply shall not include any new evidentiary matter”].) These responses are dated July 27, 2023 and could easily have been submitted with the initial motion papers.

<sup>10</sup> While UMF No. 3 also cites Defendants’ Exhibits A and E, these are simply the copies of the release, and the release makes no reference to May 14, 2021.

within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence.’ [Citations.]” (*Munro, supra*, 215 Cal.App.3d at pp. 984-985; see also *Borrayo v. Avery* (2016) 2 Cal.App.5th 304, 310 [“When a defendant health care practitioner moves for summary judgment and supports his motion with an expert declaration that his conduct met the standard of care, the defendant is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence.”].)

Defendants rely upon the Schallhorn declaration, which states that based on her experience as an ophthalmologist, she is qualified to comment on the care given to Ma by Drs. Phan and Lin. (Schallhorn Decl., ¶ 2.) At the same time, she does not actually state any opinions regarding Dr. Lin in her declaration. As for Dr. Phan, she opines:

Cataract formation is a known potential complication of the ICL procedure. The ICL consent that plaintiff signed references cataract among other potential complications of the procedure. There is documentation that this risk was discussed with the plaintiff prior to surgery. The operative report does not detail any surgical maneuvers or procedures that are outside of the standard of care. As the plaintiff consented to those risks and the surgical procedure was performed to the standard of care, it is my opinion that Dr. Phan was not negligent based upon the operative report and records I reviewed.

(*Id.* at ¶ 14.) Schallhorn concludes by stating that based upon her review, “it is my opinion that Dr. Phan’s care and treatment of plaintiff Caroline Ma was at all times medically appropriate and within the standard of care in all respects.” (*Id.* at ¶ 16.)

Assuming for purposes of argument that Schallhorn’s declaration is sufficient to meet Defendants’ initial burden as to Dr. Phan, the court finds that Ma has met her burden of raising a triable issue of material fact through the opposing declaration of Hillman. Hillman states that “[d]uring the left eye procedure on Plaintiff, Dr. Phan caused a tear in the anterior capsule, resulting in a traumatic cataract and subsequent vision loss.” (Ma Exhibit K, Hillman Decl., ¶ 9c.) Hillman goes on to opine:

In my expert opinion, Dr. Gregory Phan breached the standard of care by failing to disclose to Plaintiff that he had never performed an ICL surgery before, and that he was not certified to independently perform ICL surgeries at the time of Ms. Ma’s procedures. This was not a minor omission, it was a material fact that directly implicated the risks associated with the surgery and Plaintiff’s ability to give informed consent. A reasonably careful Ophthalmologist in Dr. Phan’s position would have disclosed this fact to a patient prior to proceeding with this surgery. The standard of care requires full and transparent disclosure of the physician’s experience and qualifications, particularly when the physician lacks prior surgical experience with the procedure being recommended.

This failure is made even more concerning by the fact that Dr. Phan had not performed cataract surgery, a closely related procedure requiring similar intraocular surgical skills, since approximately 2001 . . . . This lapse in relevant surgical experience and skills significantly increased the risk of injury during

Plaintiff's ICL procedures, including the traumatic injury to Plaintiff's left eye anterior capsule.

Performing an ICL surgery without current and relevant surgical experience, and without proper certification, elevated the foreseeable risk of intraoperative error. Dr. Phan's failure to disclose his lack of experience and certification status deprived Plaintiff of her right to make a fully informed decision about whether to proceed with the ICL procedures, and whether to consent to having the procedures performed by a surgeon with no prior ICL experience. In my professional opinion, this omission constitutes a clear breach of the standard of care.

(Hillman Decl., ¶¶ 10-12.)

This is sufficient conflicting expert evidence to raise a triable issue of material fact as to whether Dr. Phan's treatment of Ma met the applicable standard of care.

The motion for summary judgment on the ground that Dr. Phan did not breach the standard of care is denied.

### **3. Whether Dr. Lin Owed Ma a Duty of Care**

The only evidence submitted in support of Defendants' argument that Dr. Lin did not owe Ma a duty of care is: (1) the FAC, and (2) the medical records from IQ Laser Vision, submitted as Exhibit A to the Kanter declaration. (See "Issue" 4, UMFs Nos. 1 and 2 in Defendants' Separate Statement.) The brief argument in Defendants' memorandum also relies on the assertion that "[t]here is no evidence in this case" that Dr. Lin owed or breached a duty of care. (See Memorandum, p. 15:18-21.)

The FAC's first cause of action for medical malpractice is expressly asserted against Dr. Lin, and so the FAC does not support Defendants' argument on this point. As discussed above, the standard of care against which the acts of a physician are to be measured is a matter peculiarly within the knowledge of experts; it presents the basic issue in a malpractice action and can only be proved by their testimony. (See *Flowers*, *supra*, 8 Cal.4th at p. 1001.) Defendants have failed to submit any expert testimony stating that Dr. Lin did not owe Ma any duty of care. While Schallhorn's declaration briefly mentions Dr. Lin, it does not express any opinion that he did not owe Ma a duty of care.

More basically, when a defendant moves for summary judgment on the ground that a plaintiff has "no evidence" to establish an essential element of a cause of action, a moving defendant must support such a motion with discovery admissions or other admissible evidence following extensive discovery, showing that "plaintiff does not possess, and cannot reasonably obtain, needed evidence." (*Aguilar*, *supra*, 25 Cal.4th at pp. 854-855.) It is not enough for a moving defendant to show merely that a plaintiff currently "has no evidence" on a key element of the claim. (See *Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891, citing *Aguilar* ["the absence of evidence to support a plaintiff's claim is insufficient to meet the moving defendant's initial burden of production. The defendant must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim."].) "Such evidence may consist of the deposition testimony of the plaintiff's witnesses, the plaintiff's factually devoid discovery responses, or admissions by the plaintiff in deposition or in response to requests for admission

that he or she has not discovered anything that supports an essential element of the cause of action.” (*Lona v. Citibank, N.A.* (2011) 202 Cal.App.4th 89, 110.) “A motion for summary judgment is not a mechanism for rewarding limited discovery; it is a mechanism allowing the early disposition of cases where there is no reason to believe that a party will be able to prove its case.” (*Weber v. John Crane, Inc.* (2006) 143 Cal.App.4th 1433, 1441-1442.)

The medical records submitted as Exhibit A to the Kanter declaration do not satisfy Defendants’ burden, nor does Ma’s deposition testimony (which is not even cited to support this argument).

The court finds that, under both the specific standards that apply to summary judgment in the medical malpractice context and the more general standards that apply to a motion for summary judgment on the basis that a plaintiff has “no evidence,” Defendants have failed to meet their initial burden of showing that there is no evidence that Dr. Lin owed any duty of care to Ma.

Even if it were assumed for purposes of argument that Defendants had met their initial burden, and the burden had shifted to Ma, the result would be the same. Ma’s expert, Hillman, states: “It is also my opinion that Dr. Robert T. Lin, as the owner and president of IQ Laser Vision, had an independent duty to ensure that patients were informed of the fact that Dr. Phan was performing his first ICL procedure and was using patients at IQ Laser Vision to become certified. His failure to make this disclosure also violates the standard of care.” (Ma Ex. K, Hillman Decl., ¶ 13.) This expert opinion testimony would be sufficient to raise a triable issue of material fact as to whether Dr. Lin owed a duty of care to Ma and breached that duty, even if Defendants had met their initial burden on this point.

The motion for summary judgment on the ground that Dr. Lin did not owe Ma a duty of care is denied.

#### **D. Objections to Evidence**

Objections to evidence made in connection with a motion for summary judgment or adjudication must comply with rule 3.1354 of the California Rules of Court. Rule 3.1354(a) states, “Unless otherwise excused by the Court on a showing of good cause, all written objections to evidence in support of or in opposition to a motion for summary judgment must be served and filed at the same time as the objecting party’s opposition or reply papers are served and filed.” Rule 3.1354 requires the filing of two documents, evidentiary objections and a separate proposed order on the objections, and both must be in one of the two approved formats set forth in the rule. Courts are not required to rule on objections that do not fully comply with the rule. (See *Vineyard Spring Estates v. Superior Court* (2004) 120 Cal.App.4th 633, 642 [trial courts only have duty to rule on evidentiary objections presented in proper format]; *Hodjat v. State Farm Mutual Automobile Ins. Co.* (2012) 211 Cal.App.4th 1 [trial court not required to rule on objections that do not comply with Rule of Court 3.1354 and not required to give objecting party a second chance at filing properly formatted papers].) “Objections to evidence that are not ruled on for purposes of the motion shall be preserved for appellate review.” (Code Civ. Proc., § 437c, subd. (q).)

With their reply, Defendants have submitted an objection to the entirety of Ma’s Exhibit L (her declaration in opposition to the motion), arguing that it is a “sham declaration.”

For the reasons already noted above, the court finds that it is not a sham. This objection is overruled.

#### **IV. SUMMARY**

The court DENIES Defendants' request for judicial notice.

The court DENIES Defendants' motion for summary judgment as to defendants Amber Li, Robert T. Lin, M.D., Inc., and IQ Laser Vision/Vision Institute of Northern California as MOOT.

The court DENIES Defendants' motion for summary judgment to the extent that it is based on a release signed by Ma.

The court DENIES Defendants' motion for summary judgment to the extent that it is based on the argument that Dr. Phan's care and treatment of Ma met the standard of care as a matter of law.

The court DENIES Defendants' motion for summary judgment to the extent that it is based on the argument that Dr. Lin did not owe Ma a duty of care.

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**Calendar Line 6**

**Case Name:** *Itria Ventures LLC v. Anthony Murga, Jr.*

**Case No.:** 24CV444866

Itria Ventures LLC (“Itria”) moves for summary judgment against defendant Anthony Murga, Jr., arguing that there is no material dispute that Murga breached a settlement agreement between the parties (as well as with certain third parties). Notice is proper, and the court did not receive a timely opposition from Murga.

On August 6, 2025, five days after the opposition due date, Murga, representing himself, filed a one-page “declaration . . . in response to [proposed] order granting plaintiff’s motion for summary [judgment].” (Capitalization removed.) In this belated declaration, Murga admits that he signed the settlement agreement and that he has not paid the “alleged debt,” but he contends that the agreement does not reflect his “informed consent,” and that he “was not afforded due process or fair explanation before being implicated in this alleged agreement.” (Declaration, pp. 1:24-2:2.) He does not identify who was supposed to provide him with a “fair explanation” or explain why Itria had a duty to ensure that there was “informed” consent as opposed to just consent on his part.

The court finds that Murga’s declaration does not raise any genuine issue of material fact, and that his “informed consent” and “due process” arguments are conclusory and without foundation. Because the declaration does not respond to any of the undisputed material facts contained in Itria’s separate statement, Itria has shown that there is no triable issue of material fact as to its breach of contract cause of action.

The motion is GRANTED.

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## Calendar Line 8

**Case Name:** *Adam Guillette v. X Corp.*

**Case No.:** 25CV467060

This is a petition to enforce an interstate subpoena under Code of Civil Procedure section 2029.600, which is part of the Interstate and International Depositions and Discovery Act. Petitioner Adam Guillette seeks to obtain identifying information for three anonymous accounts on the “X” social media platform owned and operated by respondent X Corp. (formerly known as “Twitter”). According to Guillette, these three accounts sent harassing, threatening, and anti-Semitic messages to him in late 2023 that coincided with “swatting” incidents that occurred in his and his relatives’ homes (where police were called to respond to false reports of violent crimes). In addition, at least one of these accounts specifically referred to the swatting incidents: “You should be swatted daily until you stop funding the mobile billboards. You reap what you sow . . . gonna suck when Liberty [Guillette’s dog] becomes collateral damages [sic] if you get swatted again.” (Guillette Declaration, ¶ 31.) According to Guillette, he has been swatted at least 13 times, and he has received similar threatening and racist messages on other social media platforms, as well.

Guillette has filed a “Complaint for Pure Bill of Discovery” in Florida state court, seeking discovery from various social media companies, including X Corp., and he specifically seeks to enforce his subpoena as to X Corp. here in Santa Clara County.<sup>11</sup> He submits that he has established a prima facie case for at least two causes of action under Florida law: (1) intentional infliction of emotional distress, and (2) cyberstalking (under Florida Statutes section 784.0485).<sup>12</sup>

In its response, X Corp. “respectfully requests that this Court review and consider the First Amendment safeguards before Petitioner is permitted to unmask the identity of the X Does. X Corp. further requests that the Court evaluate whether there is a compelling need for the discovery that outweighs the privacy rights of the speaker[s] under the California Constitutional right of privacy.” (Response, p. 3:2-7.)

Having reviewed the underlying facts (including the Florida pleading and exhibits), the subpoena in question, the parties’ briefs, and the applicable case law (including *Krinsky v. Doe 6* (2008) 159 Cal.App.4th 1154 (*Krinsky*)), the court finds that Guillette has set forth prima facie causes of action for intentional infliction of emotional distress and cyberstalking under Florida law, that under *Krinsky*, the need for discovery to support these causes of action

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<sup>11</sup> According to the Florida complaint, X Corp. is a Nevada corporation with a principal place of business in San Francisco, California, so it is not exactly clear why this petition has been filed in Santa Clara County as opposed to San Francisco County. (On the other hand, one of the other companies named in the Florida complaint is Google LLC, which does have a principal place of business in Santa Clara County; it is unknown to the undersigned whether a similar petition has been filed in this court as to Google.) In his petition, Guillette alleges that X Corp. has “operations” in Santa Clara County, and this does not appear to be disputed by X Corp. (See X Corp.’s Response, dated August 8, 2025.)

<sup>12</sup> It appears that section 784.0485 is a general statute creating “a cause of action for an injunction for protection against stalking,” which “shall include the offense of cyberstalking.” “Cyberstalking” itself is defined in the previous section of the Florida Statutes (section 784.048) as including communicating “directly or indirectly, words, images, or language by or through the use of electronic mail or electronic communication, directed at or pertaining to a specific person . . . causing substantial emotional distress to that person and serving no legitimate purpose.”

outweighs the X Does' (or X Doe's, if it is in fact one and the same person) "First Amendment right to speak anonymously" (159 Cal.App.4th at p. 1179), and that X Corp. must therefore comply with Guillette's subpoena, at least to the extent previously agreed by the parties. According to X Corp., the parties agreed that if compelled by the court, the data to be produced is limited to "the name, email address, phone number, and IP logs associated with the Anonymous Accounts." (Response, p. 2:19-26.)

In its response, X Corp. asks that the court also conduct a balancing test of the X Does' (or X Doe's) right(s) of privacy under the California Constitution. It is unclear to the court whether such a balancing of California privacy rights (as opposed to First Amendment rights under the U.S. Constitution) is appropriate here, as it is unclear whether these Does (or this Doe) are even located in California. Nevertheless, to the extent that it does apply, the court finds that Guillette has shown a compelling need for discovery that outweighs the Does' California state law rights of privacy, as well.

The petition is GRANTED. X Corp. shall respond substantively to the subpoena within 10 days of notice of entry of this order.

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